

25VECV07301 25VECV07301

County: los-angeles

Division: Civil Law and Motion

Department: W

Hearing date: 2026-08-13

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Case Number: 25VECV07301 Hearing Date: August 13, 2026 Dept: W

SUPERIOR

COURT OF THE STATE OF CALIFORNIA

FOR

THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

BLAKE LINDEMANN,

an individual,

Plaintiff,

vs.

SKY READY MIX, INC., a California

corporation; DANNY CHAVEZ CONCRETE

PUMPING, INC.; SACEE, LLC, a California

Limited Liability Company; ROBERT

SHAPIRO, an individual; SEAN GABAY, an

individual; JOSE MUNOZ, an individual,

and

DOES 1 to 10,

Defendants.

CASE NO: 25VECV07301

ORDER

RE:

MOTION

TO CLARIFY OR PARTIALLY

RECONSIDER

MAY 20, 2026, NOTICE OF RULING

Dept. W

8:30 a.m.

August 13, 2026

ORDER: The Court CLARIFIES its May 20, 2026, Order. The stay pending appeal in this case is still in effect. The deadlines for all future filings are tolled during the stay period. The Motion for Reconsideration filed by Plaintiff on October 27, 2025, is timely, and can be re-calendared as necessary.

Background

This is a property nuisance case. Plaintiff is Blake Lindemann, a property owner. Defendants are construction companies Sky Ready Mix, Inc., Danny Chavez Concrete Pumping, Inc., and Sacee, LLC, as well as individual contractors Jose Munoz, Robert Shapiro, and Sharon Gabay. Moving Defendants here are Sacee LLC and Sharon Gabay, Plaintiff's next-door neighbors.

Plaintiff alleges that Defendants constructed a wall adjacent to his property without a permit and in violation of multiple municipal codes. On December 4, 2024, Plaintiff filed his original complaint, alleging: 1) public nuisance, 2) private nuisance, 3) declaratory relief.

On May 19, 2025, Moving Defendants Sharon Gabay and Sacee LLC demurred

to all three of Plaintiff's causes of action. Moving Defendants argued that all the claims fail to allege facts sufficient to maintain a cause of action. Additionally, Moving Defendant argued that all three claims were duplicative of previous pending actions, and thus are precluded from being alleged here.

On October 16, 2025, this Court sustained Moving Defendants' demurrer without leave to amend, based on arguments of issue and claim preclusion.

On October 27, 2025, Plaintiff filed a Motion for Reconsideration.

On December 12, 2025, at a status conference for this case, this Court issued a stay of the case in its entirety, as the underlying case that supported Moving Defendants' argument for claim preclusion (21VECV01653) was pending appeal. The Court also continued all pending motions to June 24, 2026.

On May 20, 2026, at another status conference, Plaintiff failed to appear. Defendant informed the Court that the appeal in the original case was still pending. The Court vacated all the pending motion and trial dates and scheduled another status conference for December 7, 2026.

Now, the Court hears Plaintiff's recently filed Motion for Reconsideration.

Discussion

Plaintiff seeks clarification or reconsideration of the May 20, 2026, order vacating all motion and trial dates. (Mot. for Reconsideration, p. 2:4-5.) Specifically, Plaintiff requests a clarification that the motions being taken off calendar does not affect the original stay this Court ordered. (Id. p. 2:13-19.) Plaintiff is concerned that, without clarification, his earlier Motion for Reconsideration, as to the October 16th, 2026, demurrer, will fall outside the ten-day filing deadline, now that it has been removed from the calendar.

Under CCP § 128(a)(8), this Court has the power to "amend and control its process and orders so as to make them conform to law and justice." (CCP § 128(a)(8).) Thus, the Court will clarify its May 20, 2026, order as requested.

The Court holds that the original stay imposed in this case remains in effect, and that the deadlines for the filing of any future motions or other proceedings are tolled until further order of the Court. The Court also notes that before

this stay was issued, Plaintiff had timely filed his Motion for Reconsideration as to the demurrer, thus any future rescheduled hearing will be considered timely as well. The Court also clarifies that any other timely-filed motions that were taken of calendar will be re-calendared, once the stay is lifted.

Conclusion

The Court CLARIFIES its May 20, 2026, Order. The stay pending appeal in this case is still in effect. The timing rules for all filings are being tolled, and the Motion for Reconsideration already filed by Plaintiff on October 27, 2025, is timely, and can be re-calendared as necessary.

IT IS SO ORDERED.

Plaintiff TO GIVE NOTICE.

August 13, 2026